



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

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From insight to impact.

Agenda

- Introduction to the Course
- Definition of a Constitution
- Functions of a Constitution
- Sources of Constitutional Law
- Structural Principles of the Constitution

Course – Structure

The course is subdivided into two parts: Introduction to Constitutional Law (part 1: Prof. Patricia Egli) and Introduction to Public International Law (part 2: Prof. Leena Grover).

Both parts consist of:

- weekly lectures;
- exercises every other week;
- and independent studies every other week.

The lectures, exercises and independent studies take place on campus and are designed to be interactive. Thus, prepare by studying the relevant mandatory course literature, the cases and the Q&A catalogues. Always take your copy of the Legal Materials with you.

Learning Objectives – Constitutional Law

Discussing different areas of constitutional law in Switzerland to assess the basic legal concepts underlying the Swiss state such as:

- the principle of the *Rechtsstaat*;
- federalism;
- democracy;
- social justice and
- the fundamental rights guaranteed by the Swiss Constitution.

Course – Structure

Prelecture

- Prepare the topic by reading the relevant pages in the mandatory course literature (view information on StudyNet/Canvas)

Lectures

- Follow the live lectures on campus
- If you are unable to attend, you may study the slides and answer the quizzes available on Canvas/StudyNet

Course – Structure

Exercises

- Discuss cases on the topic in smaller groups (view your respective exercise course room on StudyNet/Canvas)
- The exercises take place every other week
- If you are unable to attend the exercises, you may answer the quizzes available on StudyNet/Canvas

Independent Studies

- Discuss the Q&A catalogues in independent study groups on campus (view information on StudyNet/Canvas)
- The independent studies take place every other week
- If you are unable to attend, you may study the slides and answers to the Q&A catalogues on StudyNet/Canvas

Course – Literature

- Patricia Egli, Introduction to Swiss Constitutional Law, 3rd ed., Zurich/St.Gallen 2024
- Patricia Egli, Introduction to Public International Law, 3rd ed., Zurich/St.Gallen 2024
- University of St. Gallen Law School (ed.), Swiss Constitutional Law / Public International Law (Legal Materials), 2nd ed., StudyTools 2026
- The cases and additional materials for the exercises are provided for each group separately on StudyNet/Canvas. Check your respective exercise group room for details.
- In the independent study groups, you are discussing Q&A catalogues available on StudyNet/Canvas.
- Check also the additional material and documents on StudyNet/Canvas.

Course – Examination

- Central **digital** written examination (180 mins.)
- The examination consists of two equal parts: the first part covers constitutional law (90 mins.) and the second part covers public international law (90 mins.)
- The examination content comprises the books referred to in the course literature
- All lecture, exercise and independent study documents posted on StudyNet/Canvas until the end of the spring semester

Popular initiative for partial revision of the Swiss Constitution



According to a recent study by the Swiss National Bank (SNB), Swiss residents are moving away from using cash. In 2017, more than seven out of ten people paid with cash. In 2024, only three out of ten did so, and among those aged 15 to 34, fewer than two in ten used cash. However, according to a 2025 study by the University of St. Gallen, cash is gaining in popularity due to current economic instability. On 8 March 2026, voters and cantons will decide whether to guarantee, in the constitution, the availability of cash. They will vote on the „cash is freedom“ initiative. It calls for banknotes and coins to be forever available in sufficient quantities and that any attempt to replace the Swiss franc with another currency must be adopted by the voters and cantons (new Art. 99 Cst). The Federal Council and Federal Parliament agreed on a counterproposal with a different wording amending Art. 99 Cst that the Swiss franc is the national currency and that the SNB must guarantee the supply of cash.

Source: <https://www.swissinfo.ch/eng/swiss-politics/swiss-to-vote-on-preserving-cash-as-a-payment-system/90786867>

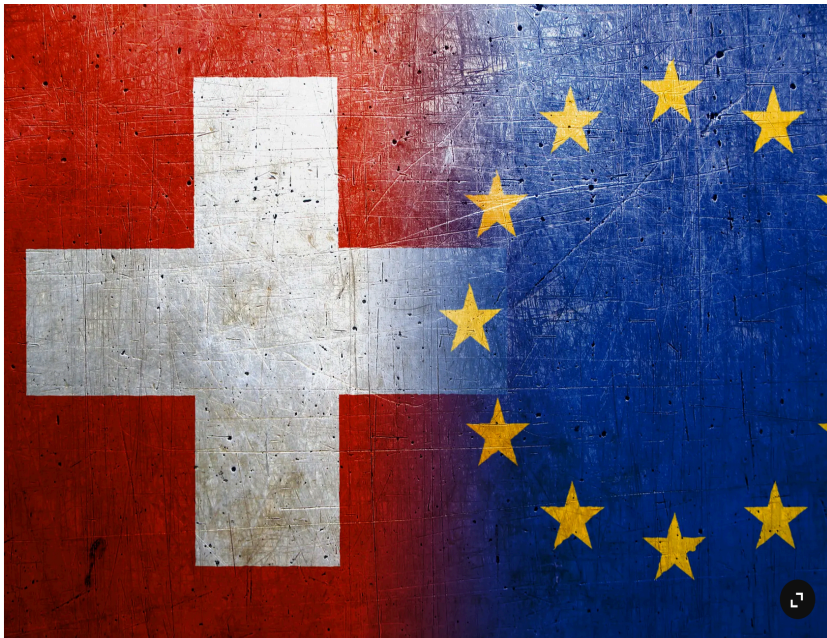
Referendum on Federal Act on Individual Taxation



Currently, married couples are taxed jointly and unmarried couples are taxed individually. In addition, different tax rates apply. This means that married couples and unmarried couples pay different levels of tax. This unequal treatment is to be abolished („marriage tax penalty“). Federal Parliament has therefore passed the Federal Act on Individual Taxation. This bill is an indirect counterproposal to the popular initiative „Fair Taxation Initiative“. As a referendum has been called on this bill, it will be put to a vote on 8 March 2026. Under the bill, married couples will also be taxed individually in future. Each person will pay tax on their own income and assets, and the same tax rate will apply to everyone. The bill will reduce the tax burden on taxpayers by an estimated total of CHF 630 million per year in direct federal tax. The cantons will also have to introduce individual taxation.

Source: <https://www.admin.ch/gov/en/start/documentation/votes/20260308/imposizione-individuale.html>

Switzerland and EU agreements on future bilateral relations



The year 2026 promises to be a landmark one for the future relations between Switzerland and the EU, the most important trading partner. Switzerland and the EU will finalize a new package of agreements to stabilize and develop their ties (Bilateral III). After analysing the results of a consultation phase, the Federal Council plans to adjust certain points and is expected to submit a proposal to the Federal Parliament in March. The Parliament will start debating it in spring. These discussions promise to be heated. The agreements will also have to be ratified by the Council of the EU and then by the European Parliament in autumn. If the agreements are approved, the final step in Switzerland will be a popular vote in 2027. However, the form of the vote is still debated.

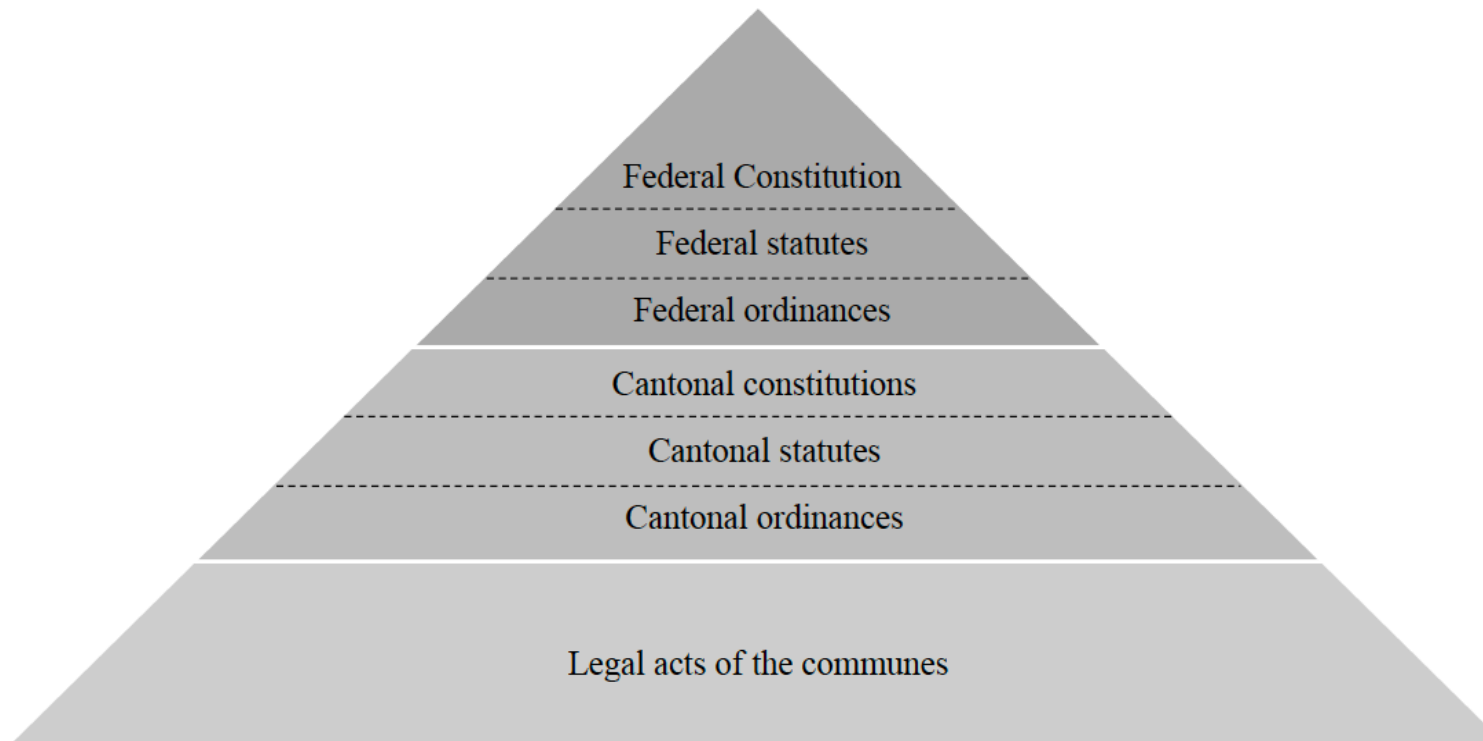
Source: <https://www.swissinfo.ch/eng/swiss-politics/what-lies-ahead-for-switzerland-the-major-political-issues-of-2026/90680803>

Constitutional Law

A constitution is a set of fundamental principles and rules according to which a state is governed. These basic principles and rules make up, i.e. *constitute*, the state.

Constitutional law therefore refers to a set of basic legal principles and rules that define the nature, function and organization of a state.

Constitutional Law

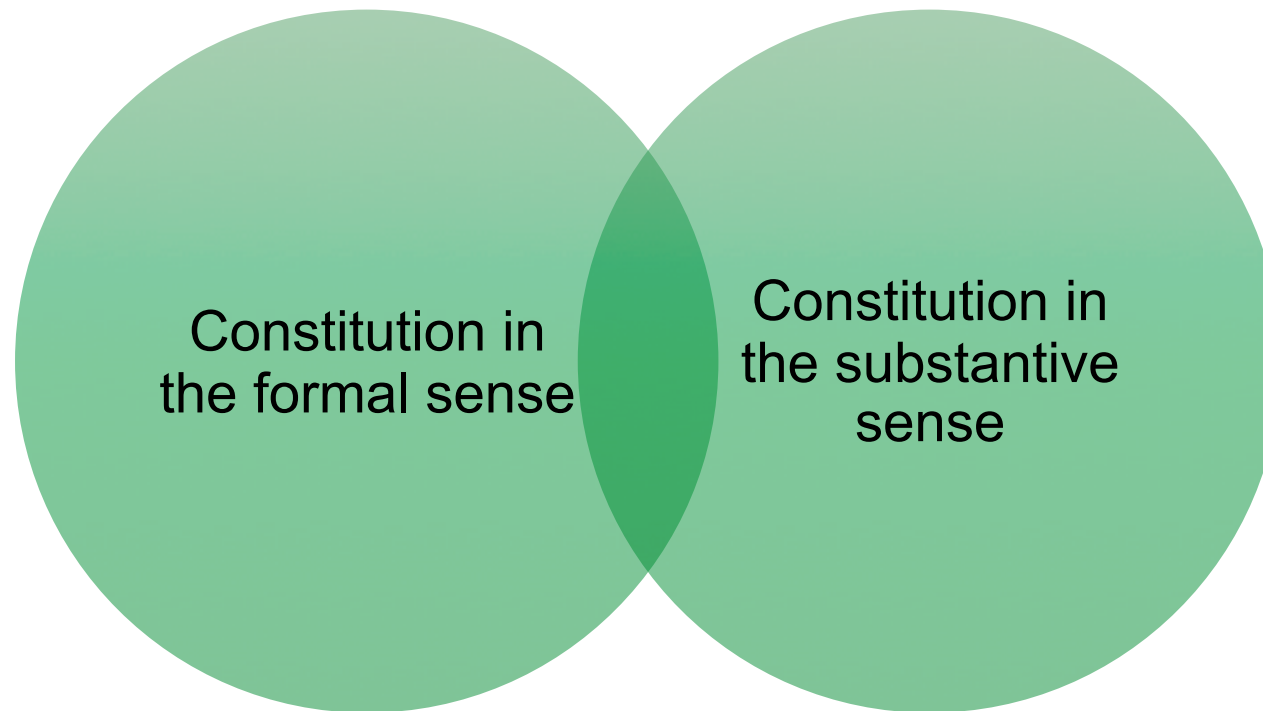


Constitutional Law

The constitution in the formal sense encompasses all legal provisions enacted in the special enactment procedure of the constitution.

The constitution in the substantive sense encompasses all essential legal principles concerning the nature of the state and its relation to individuals.

Constitutional Law



Constitutional Law

Are the following principles part of the constitution in the formal or substantive sense or both?

1. Assume that the popular initiative “cash is freedom” will be approved by the voters and the cantons on 8 March 2026 (new Art. 99 para. 1bis and 5 Cst)
2. Assume that the Federal Act on Individual Taxation will be approved by the voters on 8 March 2026 amending the Federal Act on Direct Federal Taxation with Art. 8a.
3. Equality Before the Law (Art. 8 para. 1 Cst)
4. Principle of democracy

Federal Constitution of the Swiss Confederation, SR 101

Art. 99 Monetary policy (new)

^{1bis} The Federal Government shall ensure that coins and banknotes are always available in sufficient quantities. (...)

⁵ The replacement of the Swiss franc by another currency must be put to a vote by the people and the cantons.

Federal Act on Direct Federal Taxation, SR 642.11

Art. 8a (new)

- ¹ Income and deductions are attributed to the taxpayer (...).
- ² Costs are allocated to the taxpayer in accordance with the associated income. (...)

Federal Constitution of the Swiss Confederation, SR 101

Art. 8 Equality Before the Law

¹ Every person is equal before the law. (...)

Functions of a Constitution

1. Order and Organization
2. Limits of Power and Guarantees of Freedom
3. Creation and Direction

Functions of a Constitution

Discuss the functions of the following provisions:

- Aims (Art. 2 Cst)
- Cantons (Art. 3 Cst)
- Human Dignity (Art. 7 Cst)
- Status of Federal Supreme Court (Art. 188 Cst)
- Social Objectives (Art. 41 para. 1 lit. c Cst)

Federal Constitution of the Swiss Confederation, SR 101

Art. 2 Aims

- ¹ The Swiss Confederation shall protect the liberty and rights of the people and safeguard the independence and security of the country.
- ² It shall promote the common welfare, sustainable development, internal cohesion and cultural diversity of the country.
- ³ It shall ensure the greatest possible equality of opportunity among its citizens.
- ⁴ It is committed to the long term preservation of natural resources and to a just and peaceful international order.

Federal Constitution of the Swiss Confederation, SR 101

Art. 3 Cantons

The Cantons are sovereign except to the extent that their sovereignty is limited by the Federal Constitution. They exercise all rights that are not vested in the Confederation.

Federal Constitution of the Swiss Confederation, SR 101

Art. 7 Human Dignity

Human dignity must be respected and protected.

Federal Constitution of the Swiss Confederation, SR 101

Art. 188 Status

- ¹ The Federal Supreme Court is the supreme judicial authority of the Confederation.
- ² Its organisation and procedure are governed by law.
- ³ The Federal Supreme Court has its own administration.

Federal Constitution of the Swiss Confederation, SR 101

Art. 41 Social Objectives

- ¹ The Confederation and the Cantons shall, as a complement to personal responsibility and private initiative, endeavour to ensure that: (...)
- c. families are protected and encouraged as communities of adults and children;
(...)

Sources of Constitutional Law

The Federal Constitution of the Swiss Confederation of 18 April 1999 is the most important source of constitutional law.

Other sources of constitutional law are public international law, federal statutes, and customary law insofar as they encompass essential rules of constitutional dimension.

The case law of the Federal Supreme Court plays a very significant role, although it is not a formal source of constitutional law.

Federal Constitution of the Swiss Confederation of 18 April 1999

Content - Overview	
Preamble	
Title One: General Provisions	Art. 1-6
Title Two: Fundamental Rights, Citizenship and Social Goals	Art. 7-41
Title Three: Confederation, Cantons and Communes	Art. 42-135
Title Four: The People and the Cantons	Art. 136-142
Title Five: Federal Authorities	Art. 143-191c
Title Six: Revision of the Federal Constitution and Transitional Provisions	Art. 192-197

Public International Law

European Convention on Human Rights (ECHR) of 4 November 1950, SR 0.101

International Covenant of 16 December 1966 on Civil and Political Rights of the United Nations, SR 0.103.2

International Covenant of 16 December 1966 on Economic, Social and Cultural Rights, SR 0.103.1

International Convention on the Elimination of All Forms of Racial Discrimination of 21 December 1965, SR 0.104

Convention on the Rights of the Child of 20 November 1989, SR 0.107

Federal Statutes

Federal Act of 20 June 2014 on Swiss Citizenship (SCA), SR 141.0

Federal Act of 17 December 1976 on Political Rights (PRA), SR 161.1

Federal Act of 13 December 2002 on the Federal Assembly (ParlA), SR 171.10

Federal Act of 21 March 1997 on the Organisation of the Government and the Administration (GAOA), SR 172.010

Federal Act of 17 June 2005 on the Federal Supreme Court (FSCA), SR 173.110

Customary Law

- Evidence of a continuous, uninterrupted and coherent practice;
- An *opinio iuris* (“an opinion of law”) of the law-applying institutions and individuals;
- A lacuna in the written law.

Customary Law (BGE 131 I 425, E. 2) (English Translation)

“A sufficient legal basis could be found in a customary law rule. In this regard, the „recommendations of the directors of the cantonal justice and police departments regarding account blocking and professional discretion of 25 March 1997“ are of relevance. According to these recommendations, a court has the authority to prohibit the bank to inform the client of the account blocking and its circumstances if criminal investigations may be affected. The recommendations of the cantonal directors may be considered as showing an *opinio iuris*. (...) However, the practice has not been exercised for a very long time (just more than seven years). In view of the length of the practice, the recommendations cannot be considered as customary law.“

Case Law (BGE 121 I 367, E. 2a) (English Translation)

“The Constitution does not contain a specific right of subsistence. However, also unwritten fundamental rights can be in line with the Constitution. An unwritten fundamental right has been acknowledged by the Swiss Federal Supreme Court in cases in which the unwritten right is required for the exercise of another (written) fundamental right or when the unwritten right is an indispensable part of the democratic federal legal system based on the rule of law. (...) Therefore, the Swiss Federal Supreme Court has acknowledged the guarantee of ownership (...), the freedom of expression (BGE 87 I 114 E. 2), the right to personal freedom (BGE 89 I 92 E. 3), the freedom of language (BGE 91 I 480) and the freedom of assembly (BGE 96 I 219) as unwritten fundamental rights.”

Structural Principles

Principle of
the
Rechtsstaat

Principle of
federalism

Principle of
democracy

Principle of
social justice

Structural Principles

Which provisions in the Swiss Constitution mirror the principle of the Rechtsstaat, federalism, democracy, and social justice? Give an example for each structural principle.

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